IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 201
CP(CAA)/77/ND/2023

IN THE MATTER OF:

YG Estates Pvt Ltd and Softgate technologies Pvt Ltd With Mahalaxmi Castles and Villas Pvt Ltd ... Applicant

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 28.01.2026

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant :
For the RD : Dr. Kishorkumar Devarwade, Asst. Director

HYBRID HEARING (PHYSICAL & VC)
CLARIFICATION

On perusal of the contents of the petition filed by the petitioner companies, it is stated in Para 84 which is reproduced hereunder:-

> ***"84. That there are no pending investigations under Section 235 to 251 of the Companies Act, 1956 and Sections 206 to 229 or Chapter XIV or any other provision of the Companies Act, 2013 against any of the Petitioner Companies."***

The required affidavit should not be restricted to the certain provisions of the Companies Act, 2013/1956 rather than, it should be in relation to pendency of 'any investigation or proceeding'.

However, as per the requirement of Section 230(2) (a) of the Companies Act, 2013, the affidavit shall disclose about the pendency of any investigation or proceedings against the company.

Therefore, the petitioner companies are directed to file an appropriate additional separate affidavit of each company in compliance of Section 232(2)(a) within a week.

List the matter on **17.02.2026**.

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH